THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o n the International Maritime Organization concerning the functions of the Committee conf erred upon it by internationa l conventions for the prevention and control of marine pol lution, NOTING article 16 of the Internati onal Conven tion for the Prevention of Pollut ion from Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI o f the Protocol of 1978 relating to the International Conventi on for the Prevention of P ollution from Ships, 1973 (he rei nafter referred to as the "1978 Protocol"), which toge ther specify the amendment procedure of the 1978 Protocol and co nfer upon the appropria te body o f the Organization the function of considering and adopting amendment s t o th e - referred to as the "1978 Protocol"), which together specify the amendment procedure of the 1978 Protocol and co nfer upon the appropriate body o f the Organization the func tion of considering and adopting amendment s t o the 1973 Convention, a9 modified by the 1978 Pr ot ocol (MARPOL 73/78), NOTING FURTHER resolution HEPC.55(3}) by which the Commi ttee adopted amendments to th e International Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (IBC Code).

RECOGNIZING the need to bring the correspond ing amendments to the BCR Code into force o n the date on which the amendments to the IBC Code enter into force, HAVING CONSIDERED, at its thirty-third session , the amendments to the BCR Code prop ose d by the Sub-Commi ttee on Bulk Chemicals at its twenty-first session and circulated in accorda nce with ar ticle 16(2)(a) o